

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #04	CCRB Case #: 201500340	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/16/2015 12:15 AM	Location of Incident: Furman Avenue and East 240th Street	18 Mo. SOL 7/16/2016	Precinct: 47		
Date/Time CV Reported Fri, 01/16/2015 12:57 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/16/2015 12:57 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Corizzi	13632	946879	047 PCT
2. POM Michael Summa	19628	947525	047 PCT
3. POM Robert Hoey	19196	947081	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Corizzi	Abuse: PO Michael Corizzi stopped the car in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Michael Summa	Abuse: PO Michael Summa stopped the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Robert Hoey	Abuse: PO Robert Hoey stopped the car in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . POM Michael Summa	Abuse: PO Michael Summa frisked § 87(2)(b)	D . Unsubstantiated
E . POM Robert Hoey	Abuse: PO Robert Hoey frisked § 87(2)(b)	E . Unsubstantiated
F . POM Michael Summa	Abuse: PO Michael Summa searched § 87(2)(b)	F . Unsubstantiated
G . POM Robert Hoey	Abuse: PO Robert Hoey searched § 87(2)(b)	G . Unsubstantiated
H . POM Michael Corizzi	Abuse: PO Michael Corizzi searched the car in which § 87(2)(b) was an occupant.	H . Substantiated
I . POM Michael Summa	Abuse: PO Michael Summa searched the car in which § 87(2)(b) was an occupant.	I . Unsubstantiated
J . POM Robert Hoey	Abuse: PO Robert Hoey searched the car in which § 87(2)(b) was an occupant.	J . Unsubstantiated

Case Summary

On January 16, 2015, § 87(2)(b) filed this complaint with the CCRB via telephone (Encl. 4A-B). His statement is summarized below.

At approximately 12:15 a.m. on January 16, 2015, § 87(2)(b) was driving southbound on Furman Avenue, near the intersection with East 240th Street, in the Bronx. § 87(2)(b) noticed a car pulled over in the southbound lane, obstructing traffic. § 87(2)(b) and several other motorists went around the stopped car by changing briefly into the northbound lane. Shortly after § 87(2)(b) went around the stopped car, however, an unmarked sedan heading northbound turned on its lights and pulled him over (**Allegations A, B and C**). While § 87(2)(b) alleged that four uniformed officers exited the unmarked car and approached him, the investigation determined that only three officers, PO Michael Corizzi, PO Michael Summa and PO Robert Hoey of the 47th Precinct, were present during the incident.

PO Summa and PO Hoey approached § 87(2)(b)'s driver's side, while PO Corizzi went to the driver's side. PO Hoey told § 87(2)(b) that he had been pulled over for improperly passing the truck. He asked § 87(2)(b) for his license and registration, which were provided. He then asked § 87(2)(b) if there was anything illegal in his vehicle. When § 87(2)(b) replied that there wasn't, PO Hoey and PO Summa asked him to exit the vehicle. Once § 87(2)(b) was out, PO Summa and PO Hoey both frisked his legs, waist and torso (**Allegations D and E**). Both officers then reached into his pants and jacket pockets (**Allegations F and G**). Nothing was found on § 87(2)(b). He did not specify what PO Corizzi was doing during the frisk and search.

All three officers then entered § 87(2)(b)'s vehicle and searched the interior, including the glove compartment and center console, as well as the trunk (**Allegations H, I and J**). PO Corizzi then produced a folding knife that § 87(2)(b) kept in his center console. Once the knife was recovered, § 87(2)(b) was placed under arrest and taken to the 47th Precinct, where he was charged with § 87(2)(a) 160.50. He was released later that night with a DAT.

Mediation, Civil and Criminal Histories

§ 87(2)(b)'s complaint was ineligible for mediation due to his arrest. He did not file a notice of claim in regards to this incident (Encl. 12O). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed five previous CCRB complaints (Encl. 3A):
 - § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- PO Corizzi has been a member of the service for six years, and there are no substantiated CCRB allegations against him. In case #200905342, a vehicle search allegation against PO Corizzi was exonerated (Encl. 2A).

- PO Summa has been a member of the service for six years, and there are no substantiated CCRB allegations against him. In case #201010196, a vehicle search allegation was unsubstantiated against him (Encl. 2B-C).
- PO Hoey has been a member of the service for six years, and there are no substantiated CCRB allegations against him. Two previous complaints were filed against PO Hoey.

§ 87(2)(g)

Attempts to Obtain Video Footage

The incident occurred across the street from the MTA's 239th Street Maintenance Facility. Footage from the facility's security cameras was subpoenaed on January 21, 2015. On February 12, 2015, Will Robinson from the MTA contacted the undersigned investigator and stated that due to a prior equipment failure, the facility's security cameras do not record (Encl. 11A-F).

Findings and Recommendations

Allegation A: Abuse of Authority – PO Michael Corizzi stopped the car in which § 87(2)(b) was an occupant.

Allegation B: Abuse of Authority – PO Michael Summa stopped the car in which § 87(2)(b) was an occupant.

Allegation C: Abuse of Authority – PO Robert Hoey stopped the car in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) was pulled over after he passed a parked car. All three officers claimed to have witnessed the traffic infraction, and it is undisputed that all three participated in the stop. § 87(2)(b) was not issued a summons or charged with a VTL violation in regards to his initial vehicle stop (Encl. 6G-I).

§ 87(2)(b) was interviewed at the CCRB on January 21, 2015 (Encl. 5A-C). He stated that he was one of several vehicles passing the parked car. He denied that there were any cars in the northbound lane when he changed lanes to go around the parked car. He denied committing any moving violations at the time of the stop.

PO Corizzi was interviewed at the CCRB on February 26, 2015 (Encl. 6K-M), while PO Summa and PO Hoey were interviewed on March 12, 2015 (Encl. 7D-E, 8D-E). All three officers stated that § 87(2)(b) was the only vehicle passing the parked car. They also stated that § 87(2)(b) veered suddenly into their lane as they were about to pass the parked car, forcing them to stop short. The officers all stated that § 87(2)(b)'s reckless change of lanes was the sole reason that he was stopped. PO Corizzi further stated that he, as § 87(2)(b)'s eventual arresting officer, exercised his discretion and decided not to charge § 87(2)(b) with a VTL violation, as he felt that § 87(2)(b)'s subsequent weapons charge was punishment enough.

A Google Street View (Encl. 1O) of the incident location shows that this is a two-way street, but that it is not separated by any lane markings (e.g. white or yellow lines). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B and C** be closed as **unsubstantiated**.

Allegation D: Abuse of Authority – PO Michael Summa frisked § 87(2)(b)

Allegation E: Abuse of Authority – PO Robert Hoey frisked § 87(2)(b)

Allegation F: Abuse of Authority – PO Michael Summa searched § 87(2)(b)

Allegation G: Abuse of Authority – PO Robert Hoey searched § 87(2)(b)

§ 87(2)(b) alleged that both PO Summa and PO Hoey conducted the frisk and search after he was removed from his vehicle and moved about nine feet away towards the officers' unmarked vehicle. He did not account for PO Corizzi's actions at the time of the frisk and search.

PO Summa and PO Hoey stated that PO Summa alone searched § 87(2)(b) after PO Corizzi had removed § 87(2)(b)'s knife from the car and determined that it was an illegal gravity knife. They denied any frisk or search occurring before the discovery. They explained that this search was conducted incident to the arrest. PO Corizzi did not recall seeing if § 87(2)(b) was frisked or searched at any point. All three officers denied suspecting § 87(2)(b) of engaging in any sort of illegal conduct beyond his vehicular violation before PO Corizzi discovered § 87(2)(b)'s knife.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations D through G** be closed as **unsubstantiated**.

Allegation H: Abuse of Authority – PO Michael Corizzi searched the car in which § 87(2)(b) was an occupant.

It is undisputed that PO Corizzi entered § 87(2)(b)'s vehicle at some point during the stop. § 87(2)(b) stated that after he was removed from his vehicle and frisked and searched by PO Summa and PO Hoey, all three officers simultaneously entered the interior of his vehicle. The officers entered several closed compartments within the vehicle, including the glove compartment, center console and trunk. During the search, PO Corizzi recovered a knife. § 87(2)(b) described his knife as a

folding knife with a brown handle. While he could not estimate the blade's length, he stated that the entire knife, unfolded, was approximately four inches long. § 87(2)(b) stated while the knife folds freely, the joint is stiff enough that the blade had to be pulled open, and could not be "flicked" open. He also stated that the knife was kept inside of the center console, and was therefore not in plain view. § 87(2)(b) stated that the knife was only removed from his vehicle after he himself had been asked to step outside, and was escorted over to the officers' vehicle.

PO Corizzi denied conducting the extensive search that § 87(2)(b) described. He stated that shortly after the stop, he noticed § 87(2)(b)'s knife sitting in plain view, directly in front of the center console. He also described the knife as a folding knife with a brown handle. He did not recall the size of the knife, but stated that the handle was "more than" two and a half inches in length. He did not know at that time the mechanism by which the blade opened. PO Corizzi stated that after he observed the knife, he signaled his partners to ask § 87(2)(b) out of the vehicle. Once § 87(2)(b) had stepped out, he reached into the vehicle to retrieve the knife, as he considered it to be a weapon. PO Corizzi did not state where § 87(2)(b) was standing when he reached into the vehicle. PO Corizzi denied reaching anywhere else in the vehicle, or removing any items beyond the knife. Once the knife was removed, PO Corizzi determined that it was a gravity knife by flicking the blade open. No further vehicle search was conducted after the knife was recovered.

PO Corizzi prepared a Property Clerk's Invoice for § 87(2)(b)'s knife, but described it only as being a brown gravity knife. The invoice does not specify the blade's length (Encl. 90).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

According to New York City Administrative Code §10-133, it is illegal to possess a knife with a blade longer than four inches (Encl. 1A). According to New York State Penal Law §260.01, it is illegal to possess a gravity knife (Encl. 1B). Under the general automobile exception, an officer requires probable cause to believe that a vehicle contains evidence or contraband in order to conduct a warrantless search. Officers are also permitted to conduct a limited vehicle search to retrieve a weapon inside if they reasonably believe that it poses an immediate threat to their safety. This exception, however, does not apply when the suspect has already been removed from the vehicle and no longer has access to the weapon. People v. Torres, 74 N.Y.2d 224 (1989) (Encl. 1C-I).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED] Therefore, it is recommended that **Allegation H** be closed as **substantiated**.

Allegation I: Abuse of Authority – PO Michael Summa searched the car in which § 87(2)(b) was an occupant.

Allegation J: Abuse of Authority – PO Robert Hoey searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that PO Corizzi's partners assisted in searching his vehicle. He stated that all of the officers who stopped him entered his vehicle's interior, including the glove compartment, the center console and the trunk. In addition to his knife, § 87(2)(b) also alleged that officers removed his floor mats, a car jack and a toolbox. All three officers consistently stated that no officers beyond PO Corizzi reached into the car. They further stated that no search was conducted beyond PO Corizzi removing § 87(2)(b)'s knife. They denied any extensive search of the interior, including any closed compartments within the vehicle. They also denied that any items besides the knife were removed from § 87(2)(b)'s vehicle. § 87(2)(g)
[REDACTED]

Therefore, it is recommended that **Allegations I and J** be closed as **unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date